



Premier Fresh - Domenico Group

MN-40020

Phase 1 Determination

Acquisition may be put into effect

1 July 2026

1. Determination and statement of reasons

Notified acquisition	Premier Fresh Australia Pty Ltd (Premier Fresh)’s proposed acquisition of 100% of the shares in North Queensland IQF Pty Ltd and Double D Produce Pty Ltd (collectively, the Domenico Group), land containing a plant used by the Domenico Group, and leases of the farmland used by the Domenico Group (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Premier Fresh, is a fresh vegetable wholesaler, horticulture marketer and supply chain operator supplying fresh produce nationally, including to large retailer customers. Premier Fresh sources fresh produce from third-party growers and its own production assets for fresh produce. Premier Fresh does not grow capsicums other than in small volumes from time to time. The target, Domenico Group, is a Queensland-based grower and processor of fresh and frozen capsicums (and melons from time to time). The Domenico Group supplies fresh capsicums to intermediate wholesalers, including Premier Fresh, and does not directly supply fresh capsicum to end customers or retailers.
Overlap and relationship between the parties	Premier Fresh acquires the majority of the fresh capsicums produced by the Domenico Group. There is also a small overlap between the parties in the production of fresh capsicums in Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC’s approach to considering notified acquisitions, see the ACCC’s merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and prior matters, and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • There is minimal horizontal overlap between Domenico Group and Premier Fresh in the production of fresh capsicums in Australia and, post-acquisition, the merged entity would face competition from other growers.

	• The merged entity would be unlikely to have the ability and incentive to foreclose rival capsicum growers' access to wholesale distribution channels because there are sufficient alternative channels for growers to access customers, including rival fresh produce intermediary distributors and direct supply to retailers in Australia. • The merged entity would be unlikely to have the ability and incentive to foreclose rival fresh produce distributors' access to fresh capsicums because there are sufficient other growers and it appears possible for other growers to expand production.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act